

as near thereto as might be, and the deaths of parties would admit," Lord Northington said that the testator had referred no settlement to his trustees to complete, but had declared his own uses and trusts, which being declared, there was no instance where the Court had proceeded so far as to alter or change them (*c*). However, the decision to which his Lordship came seems not to have met with the entire approbation of Lord Eldon (*d*).

22. Executory trusts of chattels in wills.—In the cases relating to executory trusts of *chattels* in wills, the bequest, instead of being direct, has generally been by way of reference to a previous strict settlement of realty.

The law upon this subject was for a long time in a very unsatisfactory state, but the result of the cases (*e*) at the present day appears to be that where a testator devises lands in strict settlement, and then bequeaths heir-looms to be held by or in trust for the parties entitled under the limitations of the real estate, or without making any bequest, directs or expresses a desire that the *heir-looms shall be [*123] held upon the like trusts, even though the testator should add the words "as far as the rules of law and equity will permit," the use of the heir-looms will belong to the tenant for life of the real estate for his life, and the property of the heir-looms will vest absolutely in the first tenant in tail immediately on his birth, though he afterwards die an infant. The Court, in these cases, either regards the trust as executed, and not of a directory character, or if the trusts be executory, the Court considers it has no authority in making a settlement to insert a limitation over on the tenant in tail dying under 21. However, there is no unlawfulness in such a limitation, so that if a bequest of heir-looms in a will be clearly executory, and the testator manifests a distinct intention that a settlement shall be made of the heir-looms, and that such clauses shall be inserted as will render them

(*c*) *Austen v. Taylor*, 1 Eden. 368.

(*d*) See *Green v. Stevens*, 17 Ves. 76; *Jervoise v. Duke of Northumberland*, 1 J. & W. 572.

(*e*) *Scarsdale v. Curzon*, 1 Johns. & Hem. 40, and the cases there cited

and commented upon; and see *Stratford v. Powell*, 1 B. & B. 1; *Doncaster v. Doncaster*, 3 K. & J. 26; *Christie v. Gosling*, 1 L. R. H. L. 279; *Harrington v. Harrington*, 3 L. R. Ch. App. 564; 5 L. R. H. L. 87.